

could not from that time affect the pernaney of the profits of his real estate, or make any settlement of his personal estate.

15. 33 & 34 Vict. c. 23. — Now, by 33 & 34 Vict. c. 23, it is enacted by sect. 1 that “from and after the passing of the Act (4th July, 1870), no confession, verdict, inquest, conviction or judgment of or for any treason or felony, or *felo de se*, shall cause any *attainder* or corruption of blood, or any *forfeiture* or *escheat*, provided that nothing in the Act shall affect the law of forfeiture consequent upon *outlawry*.”

After defining by sect. 6, a “convict” to be “any person against whom, after the passing of the Act, judgment of death or of penal servitude, shall have been pronounced upon a charge of treason or felony,” the Act proceeds by sect. 8 to declare that a convict, while he is such, shall not [*29] bring any *action* or *suit* for recovery of any *property, debt, or damage, and shall be incapable of *alienation* (a) and then sect. 9 empowers the Crown to appoint “an *administrator*” of the convict’s property, in whom, upon appointment, all the real and personal estate of the convict is made by sect. 10 to vest, and such administrator is enabled by sect. 12 to let, mortgage, sell, convey, and transfer any part of the convict’s property, and by subsequent sections to pay debts and liabilities, &c., and to make allowances for the support of any wife or child or reputed child, or other relative or reputed relative of such convict dependent upon him for support, or for the benefit of the convict himself while at large upon licence.

Subject as above, the property is, by sect. 18, to be held in trust for the convict, his heirs, or legal personal representatives, or other persons entitled; and on his ceasing to be subject to the operation of the Act (see sect. 7) is to revest in the convict or the persons claiming under him.

In the absence of an administrator appointed by the Crown, an “*interim curator*” may, by sect. 21, be appointed by Justices of the Peace in Petty Sessions, and by sect. 24

[(a) This, however, will not prevent the convict from paying his debts and applying his property for that purpose. The object of the section is to

prevent the convict from improperly diverting his property either from his creditors or from his family. *Ex parte Graves*, 19 Ch. D. 1.]